

GAHC010168432025



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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/4436/2025

HASMAT ALI KHAN
S/O RAHIM KHAN @ ABDUL RAHIM KHA, R/O VILL- PURBA LUWASHUR,
P.S.- PATACHARKUCHI, P.O.- MAJGAON, DIST- BAJAALI, PIN-781313

VERSUS

THE UNION OF INDIA AND 6 ORS
REPRESENTED BY THE SECRETARY TO THE GOVT. OF INDIA, MINISTRY
OF HOME AFFAIRS, NEW DELHI-110001

2:THE ELECTION COMMISSION OF INDIA
REPRESENTED BY THE CHIEF ELECTION COMMISSIONER
NIRVACHAN SADAN
ASHOKA ROAD
NEW DELHI-110001

3:THE STATE OF ASSAM
REPRESENTED BY ITS SECRETARY
GOVT. OF ASSAM
HOME DEPARTMENT
DISPUR
GUWAHATI-781006

4:THE STATE COORDINATOR
NATIONAL REGISTER OF CITIZENS (NRC)
ASSAM
1ST FLOOR
ACHYUT PLAZA
G.S. ROAD
BHANGAGARH
GUWAHATI-781005

5:THE DISTRICT COMMISSIONER
BAJALI
DIST- BAJALI
ASSAM
PIN-781325

6:THE SUPERINTENDENT OF POLICE (BORDER)
BAJALI
DIST- BAJALI
ASSAM
PIN-781325

7:THE OFFICER-IN-CHARGE (BORDER)
PATACHARKUCHI POLICE STATION
BAJALI
DIST- BAJALI
ASSAM
PIN-78132

For the petitioner (s) : Mr. I. Ahmed, Advocate

For the respondent (s) : Mr. H. Kuli, SC, ECI
Mr. G. Sarma, Advocate
Mr. G. Bokolial, Govt. Advocate

BEFORE
HONOURABLE MR. JUSTICE DEVASHIS BARUAH

Date of Hearing : 08.08.2025

Date of Judgment : 08.08.2025

JUDGMENT AND ORDER (ORAL)

Heard Mr. I Ahmed, the learned counsel appearing on behalf of the petitioner. Mr. H. Kuli, the learned counsel appears on behalf of the respondent No.2; Mr. G. Sarma, the learned counsel appears on behalf of the respondent Nos.3, 4, 6 & 7 and

Mr. G. Bokolia, the learned Government Advocate appears on behalf of the respondent No.5.

2. The case of the petitioner herein is in the voters list of 2014, the name of the petitioner was marked with the letter "D" and thereupon the petitioner has approached the concerned respondent authorities for removal of the tag "D" in his name from the voters lists. As the concerned respondent authorities had failed to do so, the petitioner is before this Court under Article 226 of the Constitution of India for an appropriate direction that the letter "D" tagged with the name of the petitioner in the voters list be removed.

3. Whether a person is a "D" voter or not is a matter of factual determination and the appropriate forum to do the same is the concerned Foreigners Tribunal. This Court in exercise of its powers under Article 226 of the Constitution of India would not have the competence to decide such a question which depends on the evidence that may be produced.

4. In the circumstances, this Court therefore directs the respondent No.6 i.e., the Superintendent of Police (Border), Bajali to verify as to whether the petitioner has already been referred to the concerned Foreigners Tribunal, and if upon verification it is found that the petitioner has not been referred to

the concerned Foreigners Tribunal, this Court further directs the said respondent No.6 to refer the case of the petitioner as regards the mark "D" in the voters list in respect to 41 No. Bhabanipur LAC to a competent Foreigners Tribunal, Bajali district for an appropriate adjudication as regards the status of the petitioner as "D" voter in the concerned voters list.

5. Reference be made within a period of 2 (two) months from the date of receipt of a certified copy of this order. Upon such reference being made, the petitioner may participate in such proceedings and establish his case.

6. If the case of the petitioner as per the records had already been referred to the relevant Foreigners Tribunal, there would be no requirement to make any further reference and the detailed information of the earlier reference be communicated to the petitioner.

7. With the above directions and observations, the instant writ petition stands disposed of.

JUDGE

Comparing Assistant